

IN THE COURT OF APPEAL OF THE DEMOCRATIC SOCIALIST

REPUBLIC OF SRI LANKA

An Appeal filed in terms of Section 331 of the Code of Criminal Procedure Act No. 15 of 1979, read with Article 138 of the Constitution of the Democratic Socialist Republic of Sri Lanka.

Democratic Socialist Republic of Sri Lanka

Complainant

Court of Appeal Case No:
CA/HCC/0209/2017

High Court of Anuradhapura
Case No: **HC/212/2013**

Vs

1. Kahada Polhena Kankanamlage
Chaminda Pradeep Kumara
2. Kahada Polhena Kankanamlage
Somapala

Accused

AND NOW BETWEEN

1. Kahada Polhena Kankanamlage
Chaminda Pradeep Kumara

Accused – Appellant

Vs

Hon. Attorney General,
Attorney General's Department,
Colombo 12.

Complainant - Respondent

Before : **P. Kumararatnam, J.**
Pradeep Hettiarachchi, J.
Counsel : Dulinda Weerasuriya P.C. with H.K. Malinda for the Accused-
Appellant.
: Hiranjan Peiris A.S.G. for the State.
Argued on : 23.03.2026
Decided on : 18.06.2026

Pradeep Hettiarachchi, J

Judgment

1. This appeal arises from the judgment and sentence of the Learned High Court Judge of Anuradhapura dated 17.10.2017. The Appellant was convicted of the murder of Udagedara Narada Tisura Ratnakumara, an offence punishable under Section 296 of the Penal Code.
2. Initially, there were two accused named in the indictment. However, as the 2nd Accused died prior to the service of the indictment, the charge was subsequently amended, and the trial proceeded only against the 1st Accused, who is the Appellant in the present appeal.
3. The prosecution case was based entirely on circumstantial evidence. The principal contention advanced by the Appellant is that the circumstantial evidence adduced at the trial does not give rise to the only irresistible inference of the Appellant's guilt and, therefore, falls short of the standard required to sustain a conviction.
4. PW1, Arambegedara Siril, was the first witness to testify for the prosecution. The Appellant is a nephew of PW1 and, during the relevant period, resided in close

proximity to him. According to the evidence of PW1, the Appellant and his father were the only occupants of the house in which they lived. The deceased was also known to PW1.

5. On 3rd February 2012, PW1 saw the deceased at the Appellant's house consuming liquor together with the Appellant and his father. At around 11.00 p.m. on the same day, the Appellant came to PW1's house seeking assistance, although he did not disclose the reason for doing so.
6. Thereafter, PW1 accompanied the Appellant to the latter's house. Upon entering the house, PW1 observed the body of the deceased hanging from a beam of the roof. The Appellant sought PW1's assistance to lower the body. However, PW1 declined to do so and shortly thereafter left the scene and returned home. Upon his return, he asked his wife to pack a bag, and the two of them then proceeded to a place called Ambagahagama, where one Somapala resided. There, they knocked on the door and called for Somapala.
7. When Somapala opened the door, PW1 informed him of the incident, whereupon arrangements were made to report the matter to the police. The incident was subsequently reported, and PW1 accompanied the police to the Appellant's residence at around 2.20 a.m. on the following day. By that time, the body was no longer at the house, and the premises had been washed and cleaned.
8. Subsequently, the body of the deceased was recovered from a tank known as Bilibewa. Since there were no eyewitnesses to the commission of the offence, the prosecution relied entirely on circumstantial evidence to prove the charge against the Appellant.
9. Accordingly, the Court must consider whether the evidence adduced by the prosecution is sufficient to lead to the only reasonable and irresistible inference of the Appellant's guilt, and whether such evidence is inconsistent with any other reasonable inference consistent with the Appellant's innocence.

10. Since the Appellant's principal contention is that the circumstantial evidence led by the prosecution does not give rise to the only reasonable and irresistible inference of his guilt.

11. I think at this stage, it would be apposite to examine the legal principles applicable to the evaluation of circumstantial evidence in criminal trials.

12. In **King vs. Gunarathne 47 NLR 145**, it was held that:

“In a case of circumstantial evidence, the facts given in evidence may, taken cumulatively, be sufficient to rebut the presumption of innocence, although each fact, when taken separately, may be a circumstance only of suspicion.

The Jury are entitled to draw inferences unfavorable to an accused where he is not called to establish an innocent explanation of evidence given by the prosecution, which, without such explanation, tells for his guilt.”

13. In **Don Sunny vs. Attorney General [1998] (2) Sri. L.R. 1** it was held that:

1. When a charge is sought to be proved by circumstantial evidence the proved items of circumstantial evidence when taken together must irresistibly point towards the only inference that the accused committed the offence.

On a consideration of all the evidence the only inference that can be arrived at should be consistent with the guilt of the accused only.

2. If on a consideration of the items of circumstantial evidence if an inference can be drawn which is consistent with the innocence of the accused, then one cannot say that the charges have been proved beyond reasonable doubt.

3. If upon a consideration of the proved items of circumstantial evidence if the only inference that can be drawn is that the accused committed the offence then they can be found guilty.

The prosecution must prove that no one else other than the accused had the opportunity of committing the offence, the accused can be found guilty only and

only if the proved items of circumstantial evidence is consistent with their guilt and inconsistent with their innocence.

14. In ***Krishantha De Silva vs. The Attorney General [2003] (1) Sri. L.R, 162*** it was held inter alia that:

“Circumstantial evidence can be acted upon only if from the circumstances relied upon the only reasonable inference to draw is the inference of guilt. If the circumstances are consistent both with guilt and with innocence then the case is not proved on circumstantial evidence.”

Per Edirisuriya, J.

“The hypothesis of innocence must be excluded by the circumstance relied upon and the circumstances must point to one conclusion alone, i.e. the guilt of the accused”

15. In ***Premawansha vs. Attorney General (2009) 2 Sri. L.R. 205*** it was held that:

“In a case of circumstantial evidence if an inference of guilt is to be drawn, such an inference must be the one and only irresistible and inescapable conclusion that the accused committed the offence.”

16. When considering a case founded on circumstantial evidence, the Court must bear in mind that the prosecution is required to prove beyond reasonable doubt that the circumstances established at trial point precisely to the guilt of the accused. The circumstantial evidence must be consistent only with the hypothesis of guilt and inconsistent with any other reasonable hypothesis, including that of innocence.

17. At this point, I wish to set out a set of rules outlined in the case of ***Junaiden Mohamed Haaris vs. Hon. Attorney General (SC Appeal 118-2017)*** decided on 9.11.2018 by Justice Aluwihare, which are as follows,

“1) The inference sought to be drawn must be consistent with all the proved facts, if it is not, then the inference cannot be drawn.

2) The proved facts should be such that they exclude every reasonable inference from them, save the one to be drawn. If they do not exclude other reasonable inferences, then there must be a doubt whether the inference sought to be drawn is correct (per Watermeyer J. in R v Blom 1939 A.D.188) The rule regarding the exclusion of every hypothesis of innocence before drawing the inference of guilt was laid down way back in 1838 in the case of R vs Hodges 1838 2 Lew, cc.227). The circumstances must be such as to produce moral certainty to the exclusion of every reasonable doubt.” In the same judgment further reference has been made to the definition of circumstantial evidence in the book by E. R. S. R. Coomarswamy “The Law of Evidence” where it has stated as follows, “The chain or strand of proved facts and circumstances must be so complete that no link in it is missing. If any vital factor which is necessary to make the chain or strand complete is missing or has remained unproved, it must be held that the prosecution has failed to establish its case. A vital link should never be inferred.”

18. With these legal principles in mind, I shall proceed to consider the present appeal. In the impugned judgment, the Learned Trial Judge identified ten items of circumstantial evidence and concluded that those circumstances, when considered cumulatively, led to the irresistible inference of the Appellant’s guilt.
19. However, a careful examination of those circumstances reveals that some of the matters treated by the Learned Trial Judge as items of circumstantial evidence do not, in fact, emerge from the prosecution evidence. Consequently, the inclusion of such unsupported circumstances weakens and severs vital links in the chain of circumstantial evidence upon which the prosecution case rests.
20. In the impugned judgment, the Learned Trial Judge observed that the prosecution had proved that the short trousers worn by the Appellant when he met PW1 bore stains resembling blood. However, a careful examination of the testimony of PW1 reveals no such evidence. PW1 did not state that he observed any bloodstains, or stains resembling blood, on the Appellant’s clothing. Accordingly, this circumstance

appears to have been relied upon by the Learned Trial Judge without any evidentiary foundation in the prosecution case.

21. Item No. 06 relates to the recovery of a knife believed to belong to the deceased. However, that circumstance has little, if any, probative value in establishing the charge against the Appellant, as it does not connect the Appellant to the commission of the offence, nor does it constitute a vital link in the chain of circumstantial evidence relied upon by the prosecution.
22. Furthermore, the Learned Trial Judge's conclusion that the body of the deceased was recovered pursuant to information furnished by the Appellant and rendered admissible under Section 27 of the Evidence Ordinance is factually incorrect. The prosecution failed to mark any portion of the Appellant's statement allegedly leading to the discovery of the body. In the absence of such evidence, it cannot properly be said that the recovery of the body was a consequence of information supplied by the Appellant within the meaning of Section 27 of the Evidence Ordinance. Accordingly, that circumstance could not have been relied upon as an incriminating factor against the Appellant.
23. The DNA report marked P21 was admitted in evidence under Section 420 of the Code of Criminal Procedure Act. According to the DNA report marked P21, nine items, namely P1 to P9 and P11 to P13, were submitted to Genetech for DNA analysis.
24. P1 consisted of a blood sample collected on a cotton swab from the scene of the crime. P2 and P3 were blood samples collected on cotton swabs from the motorcycle found at the scene. P4 was a bloodstain recovered from a curtain at the crime scene, while P9 was a bloodstained knife.
25. P11 was the bloodstained pair of shorts allegedly worn by the Appellant. P12 consisted of a piece of gauze said to contain a blood sample obtained from the body of the deceased, Narada Rathnakumara.

26. The conclusions reached by Genetech are set out at page 5 of the report marked P21. According to the report, the stains found on items P1, P2, P3, P4, and P11 originated from the same male individual. The report further states that the stains found on P9 also originated from that same male individual. Accordingly, the DNA analysis establishes only that the biological material recovered from those items came from a single male source.
27. However, it does not establish that the stains found on the items sent for DNA analysis were from the deceased or from the Appellant. The report merely indicates that the samples were derived from the same male individual. In the absence of evidence identifying that individual as either the Appellant or the deceased, the report is of limited probative value. It does not establish any nexus between the Appellant and the offence and, therefore, cannot be relied upon as a material link in the chain of circumstantial evidence.
28. To elaborate further, the DNA report not only failed to complete the chain of circumstantial evidence but also gave rise to the possibility of the presence of another male individual at the scene of the crime. Consequently, rather than strengthening the prosecution's case, the DNA evidence introduces an additional uncertainty into the evidence of the prosecution.
29. Surprisingly, the Learned Trial Judge concluded that the DNA report established a link between the scene of crime, the offence, and the Appellant. In my view, such a conclusion is illogical in the absence of any evidentiary link connecting the analyzed material either to the deceased or to the Appellant.
30. In these circumstances, the circumstantial evidence adduced by the prosecution lacks the requisite cogency and completeness necessary to establish the Appellant's guilt beyond reasonable doubt. Accordingly, the prosecution has failed to present a chain of circumstances leading exclusively to the inference of the Appellant's guilt and excluding every other reasonable hypothesis consistent with his innocence.

31. While assessing the probative strength of the circumstantial evidence relied upon by the prosecution, I am mindful of the oft-cited observations of Pollock C.B. in ***Regina v. Exall* at 929**, subsequently approved and adopted by Cannon J. in ***King v. Gunarathne* at 149**, which provide valuable guidance on the manner in which courts should evaluate a chain of circumstantial evidence.

“It has been said that circumstantial evidence is to be considered as a chain, and each piece of evidence as a link in the chain, but that is not so, for them, if any one link broke, the chain would fall. It is more like the case of a rope composed of several cords. One strand of the rope might be insufficient to sustain the weight, but three stranded together may be quite of sufficient strength.”

32. However, in the present case, the infirmities discernible in the prosecution evidence do not persuade this Court to apply the principle enunciated in *Regina v. Exall* and *King v. Gunarathne* (*supra*). The deficiencies identified are not confined to peripheral or insignificant strands of the rope of circumstantial evidence. Rather, they affect some of the most vital and indispensable links upon which the prosecution's case is founded.

33. Consequently, the breakdown of those strands has the effect of severing the very rope of circumstantial evidence relied upon by the prosecution. In such circumstances, it cannot be said that the remaining evidence forms a complete and unbroken rope leading exclusively to the inference of the Appellant's guilt.

34. At the trial, the prosecution led the evidence of PW8, Sub-Inspector Ubhaya Nandana of the Nochchiyagama Police. According to his testimony, he recovered certain items pursuant to information allegedly furnished by the Appellant in a statement made to him. Among the items so recovered were a knife, a T-shirt, and the body of the deceased.

35. The specific portions of the Appellant's statement pursuant to which the said recoveries were allegedly made were marked in evidence as P11. It is noteworthy that the learned Trial Judge treated the recovery of the deceased's body as an incriminating circumstance admissible under Section 27 of the Evidence Ordinance.
36. However, a careful examination of P11 reveals that no portion of the Appellant's statement leading to the discovery of the deceased's body was marked by the prosecution. In the absence of such a marked statement, there is no evidentiary basis upon which the recovery of the body could be attributed to information furnished by the Appellant within the meaning of Section 27 of the Evidence Ordinance. Accordingly, the Learned Trial Judge erred in treating the recovery of the body as a circumstance admissible and relevant against the Appellant under that provision.
37. The foregoing facts demonstrate that the Learned Trial Judge, in arriving at his conclusion, took into account certain extraneous matters as items of circumstantial evidence, notwithstanding that such matters were never established by the evidence adduced at the trial. Consequently, reliance on those unsupported circumstances materially affected the evaluation of the prosecution case and also undermines the accuracy of the conclusion reached.
38. As stated elsewhere in this judgment, in order to sustain a conviction based on circumstantial evidence, the evidence adduced by the prosecution must lead to the one and only inference of the Appellant's guilt. It must also be inconsistent with any other reasonable inference that is compatible with the Appellant's innocence.
39. Where the Learned Trial Judge has taken into consideration certain items of evidence which do not establish any link between the Appellant and the commission of the offence, in arriving at a conclusion of guilt, such an approach undermines the very foundation of the legal principles governing the evaluation of circumstantial evidence.
40. The Supreme Court of India, in the judgment of *Sharad Birdhichand Sarda vs. State of Maharashtra, (1984) 4 SCC 166*, laid down a five-point test, which it

described as the “panchasheel of the proof of a case based on circumstantial evidence”, which must be satisfied before a conviction is entered against an accused in such a case. Paragraph 153 of the said judgment states: “[A] close analysis of this decision would show that the following conditions must be fulfilled before a case against an accused can be said to be fully established;

- i. *the circumstances from which the conclusion of guilt should be fully established,*
- ii. *the facts so established should be consistent only with the hypothesis of the guilt of the accused, that is to say, they should not be explainable on any other hypothesis except that the accused is guilty,*
- iii. *the circumstances should be of a conclusive nature and tendency,*
- iv. *they should exclude every possible hypothesis except the one to be proved, and*
- v. *there must be a chain of evidence so complete as not to leave any reasonable ground for the conclusion consistent with the innocence of the accused and must show that in all human probability the act must have been done by the accused.”*

41. It is also pertinent to observe that the Learned Trial Judge appears to have attached significance to the Appellant’s failure to respond to certain incriminating evidence adduced by the prosecution, noting in the judgment that the Appellant had neither addressed nor offered any explanation in respect of that evidence.

42. Our apex courts have repeatedly emphasized that the burden of proving every element of the offence beyond reasonable doubt rests at all times upon the prosecution. The accused bears no burden to establish his innocence or to offer any

explanation in respect of the incriminating circumstances relied upon by the prosecution. The burden never shifts from the prosecution throughout the trial.

43. If the accused offers an explanation which is accepted by the Court, or which at least raises a reasonable doubt as to the prosecution case, that would be sufficient to entitle him to an acquittal. It is not necessary for the accused to prove his explanation beyond reasonable doubt; it is sufficient if the explanation creates a reasonable doubt regarding the prosecution's version of events. In this regard, the following judgments provide valuable guidance.

44. In the case of *Pantis vs. The Attorney General* [1998] 2 SLR 148, where Justice Wijeyaratne held that,

*“The burden of proof is always on the prosecution to prove all ingredients of the charge beyond reasonable doubt and there is no burden in our law for the accused to give any explanation (unless in certain cases where specific provision is made by law). In my view it is sufficient if the accused gives an explanation which satisfies the court or at least is sufficient **to create a reasonable doubt** as to his guilt.”*

45. In the present case, the prosecution evidence is marred by material discrepancies and infirmities which sever vital strands in the rope of circumstantial evidence relied upon by the prosecution. Consequently, the prosecution has failed to establish a complete and unbroken chain of circumstances leading exclusively to the guilt of the Appellant. In that event, the question of evaluating the credibility of the defence evidence does not arise, for the weakness of the defence cannot cure the deficiencies in the prosecution case.

46. Upon a consideration of the foregoing facts and the applicable legal principles, I am of the view that it would be unsafe to allow the conviction to stand. Accordingly, the appeal is allowed, and the conviction and sentence dated 17.10.2017 are hereby set aside. The Appellant is acquitted of the charge.

Judge of the Court of Appeal

P. Kumararatnam, J

I agree,

Judge of the Court of Appeal